

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-01

VISUAL COMFORT & CO.

V.

COSCO SHIPPING LINES CO., LTD.

**COMPLAINANT’S MOTION FOR LEAVE TO FILE SUR-REPLY RELATED TO
RESPONDENT’S MOTION FOR JUDGMENT ON THE PLEADINGS**

Complainant, Visual Comfort & Co. (“Complainant”), by and through the undersigned counsel, respectfully requests leave from the Commission to file a sur-reply to address information material to the resolution of Complainant’s Response to COSCO’s Motion for Partial Judgment on the Pleadings (the “Motion”).

On March 20, 2024, COSCO filed its Motion for Partial Judgment on the Pleadings (the “Motion”). Complainant responded by filing its Opposition to COSCO’s Motion for Partial Judgment on the Pleadings on April 4, 2024 (the “Opposition”). On April 11, 2024, COSCO filed its Reply, in which it submitted a challenge to Complainant’s standing for lacking formal assignment of claims from relevant parties. Accordingly, as there have been material changes to the facts which will aid in resolution of the Motion, and Complainant did not have the opportunity to address these developments in its Opposition, Complainant now seeks leave from the Commission to file a sur-reply and respond to these new arguments.

A sur-reply may be granted “upon a showing of extraordinary circumstances.” FMC R. of Procedure § 502.70(d).

“The decision to grant or deny leave is committed to the sound discretion of the Court.” *Doe v. Exxon Mobil Corp.*, 69 F. Supp. 3d 75, 85 (D.D.C. 2014) (citation omitted). In exercising its discretion, the Court should consider whether the nonmovant's proposed sur-reply would be helpful to the resolution of the pending motion. *See Gates v. District of Columbia*, 66 F. Supp. 3d 1, 29 (D.D.C. 2014). If so, and if the Court will consider these materials or arguments, then the nonmovant should be afforded the chance to address those submissions. *Green v. New Mexico*, 420 F.3d 1189, 1196 (10th Cir. 2005) (“Generally, the nonmoving party should be given an opportunity to respond to new material raised for the first time in the movant's reply.”) Instances where a valid reason for additional briefing exists or a party raises new arguments for the first time in its reply brief are circumstances under which district courts may permit a sur-reply. *See First Specialty Ins. Corp. v. 633 Partners, Ltd.*, 300 Fed. Appx. 777, 788 (11th Cir. 2008); *cf. Glass v. Lahood*, 786 F. Supp. 2d 189, 231 (D.D.C. 2011), *aff'd*, No. 11-5144, 2011 WL 6759550 (D.C. Cir. Dec. 8, 2011) (denying leave to file a sur-reply because its contents were immaterial to the resolution of the motion).

Here, Complainant seeks leave to file a sur-reply to address COSCO's argument that for Complainant to have standing requisite to maintain its claims, it must obtain formal assignments from NVOCCs. *See* Opposition at 8. Complainant has since obtained one such assignment from its main NVOCC relevant to this case and can obtain others as needed. *See* Exhibit A. Complainant requests permission to file its sur-reply, attached hereto as Exhibit B, so that the Commission may be apprised of all pertinent materials facts.

For all the foregoing reasons, Complainant requests this Commission grant the Motion and accept the sur-reply attached hereto.

Date: April 25, 2024

Respectfully submitted,

BUCHANAN INGERSOLL & ROONEY LLP

/s/ Jennifer Oliver

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 25th day of April, 2024, the foregoing Motion for Leave to File Sur-reply, with Exhibits, was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

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